

1 **SENATE FLOOR VERSION**

2 April 24, 2025

3 COMMITTEE SUBSTITUTE
4 FOR ENGROSSED
5 HOUSE BILL NO. 2807

By: Marti of the House

and

Coleman of the Senate

9 An Act relating to medical marijuana; amending 63
10 O.S. 2021, Section 427.16, as last amended by Section
11 140, Chapter 452, O.S.L. 2024 (63 O.S. Supp. 2024,
12 Section 427.16), which relates to medical marijuana
13 transporter license; providing for the issuance of
14 licenses for premises under certain circumstances;
15 directing creation of inventory manifests documenting
16 certain information by certain licensees; allowing
17 certain licensees to maintain and operate warehouses
18 under certain conditions; providing for the issuance
19 of annual permits for each warehouse location;
20 establishing terms for the issuance of permits;
21 allowing for the denial of permits; requiring
22 approval of warehouse locations by the Oklahoma
23 Medical Marijuana Authority; allowing for the
24 temporary storage of certain medical marijuana
products under certain circumstances; requiring
certain information on inventory manifests; directing
licensees of certain warehouses to maintain copies of
inventory manifests and logs; updating statutory
language; amending Sections 1 and 2, Chapter 381,
O.S.L. 2024 (63 O.S. Supp. 2024, Sections 427.27 and
427.28), which relate to facility employees'
fingerprints for criminal background check; modifying
definition; amending Section 1, Chapter 95, O.S.L.
2024 (63 O.S. Supp. 2024, Section 431.1), which
relates to pre-packaged form and rules; updating
statutory reference; providing certain exception to
certain definition; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 427.16, as last amended by Section 140, Chapter 452, O.S.L. 2024 (63 O.S. Supp. 2024, Section 427.16), is amended to read as follows:

Section 427.16. A. There is hereby created a medical marijuana transporter license as a category of the medical marijuana business license.

B. Pursuant to Section 424 of this title, the Oklahoma Medical Marijuana Authority shall issue a medical marijuana transporter license to licensed medical marijuana commercial growers, processors, and dispensaries upon issuance of such licenses and upon each renewal. Medical marijuana transporter licenses shall also be issued to licensed medical marijuana research facilities, medical marijuana education facilities, and medical marijuana testing laboratories upon issuance of such licenses and upon each renewal.

C. A medical marijuana transporter license may also be issued to qualifying applicants who are registered with the Secretary of State and otherwise meet the requirements for a medical marijuana business license set forth in the Oklahoma Medical Marijuana and Patient Protection Act and the requirements set forth in this section to provide logistics, distribution, and storage of medical marijuana, medical marijuana concentrate, and medical marijuana products.

1 D. A medical marijuana transporter license shall be valid for
2 one (1) year and shall not be transferred with a change of
3 ownership. A licensed medical marijuana transporter shall be
4 responsible for all medical marijuana, medical marijuana
5 concentrate, and medical marijuana products once the transporter
6 takes control of the product.

7 E. A transporter license shall be required for any person or
8 entity to transport or transfer medical marijuana, medical marijuana
9 concentrate, or medical marijuana products from a licensed medical
10 marijuana business to another medical marijuana business, or from a
11 medical marijuana business to a medical marijuana research facility
12 or medical marijuana education facility.

13 F. A medical marijuana transporter licensee may contract with
14 multiple licensed medical marijuana businesses.

15 G. A medical marijuana transporter may maintain a licensed
16 premises to temporarily store medical marijuana, medical marijuana
17 concentrate, and medical marijuana products and to use as a
18 centralized distribution point. A medical marijuana transporter may
19 store and distribute medical marijuana, medical marijuana
20 concentrate, and medical marijuana products from the licensed
21 premises. The licensed premises shall meet all security
22 requirements applicable to a medical marijuana business. The
23 Authority shall issue licenses upon proper application by a licensee
24

1 and determination by the Authority that the proposed site and
2 facility are physically and technically suitable.

3 H. A medical marijuana transporter licensee shall use the seed-
4 to-sale tracking system developed pursuant to the Oklahoma Medical
5 Marijuana and Patient Protection Act to create ~~shipping~~ inventory
6 manifests documenting the transport or temporary storage of medical
7 marijuana, medical marijuana concentrate, and medical marijuana
8 products throughout the state.

9 I. A licensed medical marijuana transporter may maintain and
10 operate one or more warehouses in the state to handle medical
11 marijuana, medical marijuana concentrate, and medical marijuana
12 products, provided the licensed medical marijuana transporter
13 possesses a valid, unexpired medical marijuana transporter license
14 and has applied for and received a permit for each warehouse
15 location. The Authority shall issue an annual permit for each
16 warehouse location operated by a licensee that is tied to the annual
17 medical marijuana transporter license term, and there shall be no
18 limit to the number of permits issued under a medical marijuana
19 transporter license. A permit shall be issued only upon proper
20 application by a licensee and determination by the Authority that
21 the proposed site and facility are physically and technically
22 suitable. Upon a finding that a proposed warehouse location is not
23 physically or technically suitable, the Authority shall deny the
24 permit. Each warehouse location shall be ~~registered~~ approved and

1 inspected by the Authority prior to its use. Medical marijuana
2 transporter warehouses that are licensed and approved by the
3 Authority may temporarily store medical marijuana, medical marijuana
4 concentrate, and medical marijuana products, provided that all
5 temporary storage is documented, tracked, and traceable in the
6 state-mandated seed-to-sale tracking system.

7 J. With the exception of a lawful transfer between medical
8 marijuana businesses who are licensed to operate at the same
9 physical address, all medical marijuana, medical marijuana
10 concentrate, and medical marijuana products shall be transported:

11 1. In vehicles equipped with Global Positioning System (GPS)
12 trackers;

13 2. In a locked container and clearly labeled "Medical Marijuana
14 or Derivative"; and

15 3. In a secured area of the vehicle that is not accessible by
16 the driver during transit.

17 K. A transporter agent may possess marijuana at any location
18 while the transporter agent is transferring marijuana to or from a
19 licensed medical marijuana business, licensed medical marijuana
20 research facility, or licensed medical marijuana education facility.

21 The Authority shall administer the provisions of this section and
22 the Authority, the Oklahoma State Bureau of Narcotics and Dangerous
23 Drugs Control, the Oklahoma State Bureau of Investigation, and the
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1 Attorney General shall have the authority to enforce the provisions
2 of this section concerning transportation.

3 L. The Authority shall issue a transporter agent license to
4 individual agents, employees, officers, or owners of a transporter
5 license in order for the individual to qualify to transport medical
6 marijuana, medical marijuana concentrate, or medical marijuana
7 products.

8 M. The annual fee for a transporter agent license shall be
9 Twenty-five Dollars (\$25.00) and shall be paid by the transporter
10 license-holder or the individual applicant. Transporter agent
11 license reprints shall be Twenty Dollars (\$20.00).

12 N. The Authority shall issue each transporter agent a registry
13 identification card within thirty (30) days of receipt of:

- 14 1. The name, address, and date of birth of the person;
- 15 2. Proof of current state residency;
- 16 3. Proof of identity as required for a medical marijuana
17 business license;
- 18 4. Possession of a valid state-issued driver license;
- 19 5. Verification of employment with a licensed transporter;
- 20 6. The application and affiliated fee; and
- 21 7. A copy of the criminal background check conducted by the
22 Oklahoma State Bureau of Investigation, paid for by the applicant.

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1 O. If the transporter agent application is denied, the
2 Authority shall notify the transporter in writing of the reason for
3 denying the registry identification card.

4 P. A registry identification card for a transporter shall
5 expire one (1) year after the date of issuance or upon notification
6 from the holder of the transporter license that the transporter
7 agent ceases to work as a transporter.

8 Q. The Authority may revoke the registry identification card of
9 a transporter agent who knowingly violates any provision of this
10 section, and the transporter is subject to any other penalties
11 established by law for the violation.

12 R. The Authority may revoke or suspend the transporter license
13 of a transporter that the Authority determines knowingly aided or
14 facilitated a violation of any provision of this section, and the
15 license holder is subject to any other penalties established in law
16 for the violation.

17 S. Vehicles used in the transport of medical marijuana or
18 medical marijuana product shall be:

- 19 1. Insured at or above the legal requirements in this state;
- 20 2. Capable of securing medical marijuana during transport; and
- 21 3. In possession of a shipping container as defined in Section
22 427.2 of this title capable of securing all transported products.

23 T. Prior to the transport of any medical marijuana, medical
24 marijuana concentrate, or medical marijuana products, an inventory

1 manifest shall be prepared at the origination point of the medical
2 marijuana. The inventory manifest shall include the following
3 information:

4 1. For the origination point of the medical marijuana:

- 5 a. the licensee number for the commercial grower,
6 processor, or dispensary,
- 7 b. the address of origination of transport, and
- 8 c. the name and contact information for the originating
9 licensee;

10 2. For temporary storage at a medical marijuana transporter
11 licensed premises or warehouse location that is licensed and
12 approved by the Authority:

- 13 a. the license number for the commercial medical
14 marijuana grower, medical marijuana processor, or
15 medical marijuana dispensary,
- 16 b. the address of origination of transport,
- 17 c. the name and contact information for the originating
18 licensee, and
- 19 d. the license number, physical address, and name and
20 contact information of the medical marijuana
21 transporter licensed premises or warehouse location
22 and notation that the medical marijuana, medical
23 marijuana concentrate, and medical marijuana products
24 are being temporarily stored;

1 3. For the end recipient license holder of the medical
2 marijuana:

3 a. the license number for the dispensary, commercial
4 grower, processor, research facility, or education
5 facility destination,

6 b. the address of the destination, and

7 c. the name and contact information for the destination
8 licensee;

9 ~~3.~~ 4. Quantities by weight or unit of each type of medical
10 marijuana product contained in transport;

11 ~~4.~~ 5. The date of the transport and the approximate time of
12 departure;

13 ~~5.~~ 6. The arrival date and estimated time of arrival;

14 ~~6.~~ 7. Printed names and signatures of the personnel
15 accompanying the transport; and

16 ~~7.~~ 8. Notation of the transporting licensee.

17 U. 1. A separate inventory manifest shall be prepared for each
18 licensee receiving the medical marijuana.

19 2. The transporter agent shall provide the other medical
20 marijuana business with a copy of the inventory manifest at the time
21 the product changes hands and after the other licensee prints his or
22 her name and signs the inventory manifest.

1 3. A receiving licensee shall refuse to accept any medical
2 marijuana, medical marijuana concentrate, or medical marijuana
3 products that are not accompanied by an inventory manifest.

4 4. Originating and receiving licensees, including medical
5 marijuana transporter warehouses temporarily storing medical
6 marijuana, medical marijuana concentrate, and medical marijuana
7 products, shall maintain copies of inventory manifests and logs of
8 quantities of medical marijuana received for seven (7) years from
9 date of receipt.

10 SECTION 2. AMENDATORY Section 1, Chapter 381, O.S.L.
11 2024 (63 O.S. Supp. 2024, Section 427.27), is amended to read as
12 follows:

13 Section 427.27. A. The Oklahoma Medical Marijuana Authority
14 shall require owners of medical marijuana facilities to submit their
15 fingerprints to the Oklahoma State Bureau of Investigation (OSBI)
16 for the purpose of conducting a state and federal fingerprint-based
17 criminal background check.

18 B. The Authority may require that such fingerprint submissions
19 be made as part of a medical marijuana facility application, a
20 medical marijuana facility renewal application, or an individual
21 application for a license or permit authorizing that individual to
22 be an owner of a medical marijuana facility.

23 C. Fingerprint cards and any required fees shall be sent to the
24 OSBI central repository. The fingerprint records shall be used for

1 searching the state criminal records repository and shall also be
2 forwarded to the Federal Bureau of Investigation for a federal
3 criminal record search as provided in Section 150.9 of Title 74 of
4 the Oklahoma Statutes. The OSBI shall notify the Authority of any
5 criminal history record information or lack of criminal history
6 record information discovered on the submitting individual.
7 Notwithstanding the provisions of Section 150.9b of Title 74 of the
8 Oklahoma Statutes, all records related to any criminal history
9 information discovered shall be accessible and available to the
10 Authority.

11 D. As used in this section:

12 1. "Medical marijuana facility" means an entity licensed or
13 certified by the Authority to acquire, cultivate, process,
14 manufacture, test, store, sell, transport, or deliver medical
15 marijuana; and

16 2. "Owner" means a direct beneficial owner including, ~~but not~~
17 ~~limited to,~~ all persons or entities, as follows:

- 18 a. all shareholders owning an interest of a corporate
19 entity and all officers of a corporate entity,
- 20 b. all partners of a general partnership,
- 21 c. all general partners and all limited partners that own
22 an interest in a limited partnership,
- 23 d. all members that own an interest in a limited
24 liability company,

- e. all beneficiaries that hold a beneficial interest in a trust and all trustees of a trust,
- f. all persons or entities that own interest in a joint venture,
- g. all persons or entities that own an interest in an association,
- h. the owners of any other type of legal entity, and
- i. any other person holding an interest or convertible note in any entity, which owns, operates, or manages a licensed medical marijuana facility.

SECTION 3. AMENDATORY Section 2, Chapter 381, O.S.L. 2024 (63 O.S. Supp. 2024, Section 427.28), is amended to read as follows:

Section 427.28. A. The Oklahoma Medical Marijuana Authority shall require all employees of medical marijuana facilities to submit their fingerprints to the Oklahoma State Bureau of Investigation (OSBI) for the purpose of conducting a state and federal fingerprint-based criminal background check.

B. The Authority may require that such fingerprint submissions be made as part of an individual's application for a license, permit, identification card, or credential authorizing that individual to be an employee of a medical marijuana facility.

C. Fingerprint cards and any required fees shall be sent to the OSBI central repository. The fingerprint records shall be used for

1 searching the state criminal records repository and shall also be
2 forwarded to the Federal Bureau of Investigation for a federal
3 criminal record search as provided in Section 150.9 of Title 74 of
4 the Oklahoma Statutes. The OSBI shall notify the Authority of any
5 criminal history record information or lack of criminal history
6 record information discovered on the submitting individual.

7 Notwithstanding the provisions of Section 150.9b of Title 74 of the
8 Oklahoma Statutes, all records related to any criminal history
9 information discovered shall be accessible and available to the
10 Authority.

11 D. As used in this section:

12 1. "Employee" means any natural person who:

- 13 a. grows, harvests, dries, cures, purchases, sells,
14 transfers, transports, processes, produces,
15 manufactures, creates, or packages medical marijuana,
16 medical marijuana products, or medical marijuana waste
17 on behalf of or for a licensed medical marijuana
18 commercial grower, processor, or dispensary,
- 19 b. samples, trains, or educates on behalf of or for a
20 licensed medical marijuana education or research
21 facility,
- 22 c. disposes of or transports medical marijuana, medical
23 marijuana products, and medical marijuana waste on
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1 behalf of or for a licensed medical marijuana waste
2 disposal facility,

3 d. tests and conducts research on medical marijuana and
4 medical marijuana products on behalf of or for a
5 medical marijuana licensed testing laboratory,

6 e. transports, stores, distributes, but does not take
7 ownership of, medical marijuana and medical marijuana
8 products on behalf of or for a licensed medical
9 marijuana commercial transporter,

10 f. tracks, traces, reports, and inputs any information
11 into the state inventory tracking system on behalf of
12 or for a licensed medical marijuana commercial license
13 holder, or

14 g. ~~conducts any other additional business for the benefit~~
15 ~~of a medical marijuana commercial license holder as~~
16 ~~authorized by rules promulgated by the Executive~~
17 ~~Director of the Authority, with the exception of~~
18 ~~professional services not involved in the handling of~~
19 serves in a role or provides services which would be
20 reasonably expected to involve regular physical
21 contact with medical marijuana, medical marijuana
22 products, or medical marijuana ~~concentrates~~ waste; and

23 2. "Medical marijuana facility" means an entity licensed or
24 certified by the Authority to acquire, cultivate, process,

1 manufacture, test, store, sell, transport, or deliver medical
2 marijuana.

3 SECTION 4. AMENDATORY Section 1, Chapter 95, O.S.L. 2024
4 (63 O.S. Supp. 2024, Section 431.1), is amended to read as follows:

5 Section 431.1. A. ~~Upon the effective date of this act~~
6 Beginning June 1, 2025, all medical marijuana flower, trim, shake,
7 kief, ~~medical marijuana product~~ noninfused pre-rolls, infused pre-
8 rolls, or other flower-based product not defined as a concentrate,
9 shall be sold by licensed medical marijuana processors and licensed
10 medical marijuana commercial growers to licensed medical marijuana
11 dispensaries only in pre-packaged form in package sizes weighing not
12 less than one-half (1/2) of one (1) gram to not more than three (3)
13 ounces. Licensed medical marijuana dispensaries shall have until
14 November 1, 2025, to sell or waste all current inventory that is not
15 in pre-packaged form pursuant to this section. The Oklahoma Medical
16 Marijuana Authority shall be authorized to promulgate rules
17 regarding the pre-packaging of medical marijuana products as
18 provided for in the provisions of this section.

19 B. Nonopaque materials may be used when packaging medical
20 marijuana flower, provided all other packaging and labeling
21 requirements for medical marijuana products sold in this state are
22 met and it is placed in an opaque container before leaving a
23 licensed medical marijuana dispensary.

1 C. The display and smelling of medical marijuana shall be
2 allowed pursuant to Section 421 of Title 63 of the Oklahoma
3 Statutes.

4 D. The Oklahoma Medical Marijuana Authority shall promulgate
5 rules necessary to allow for products to be returned to the licensed
6 medical marijuana dispensary when found defective or hazardous to
7 the health of the patient. The Authority shall further promulgate
8 rules necessary to allow for the return of all medical marijuana and
9 medical marijuana products from a licensed medical marijuana
10 dispensary to a licensed medical marijuana processor or licensed
11 medical marijuana commercial grower, from a licensed medical
12 marijuana processor to a licensed medical marijuana commercial
13 grower, or from any other licensed entity that transferred medical
14 marijuana products to another licensed entity.

15 SECTION 5. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

19 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
20 April 24, 2025 - DO PASS AS AMENDED BY CS
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